

Calendar Line 8

Case Name: *Adam Guillette v. X Corp.*

Case No.: 25CV467060

This is a petition to enforce an interstate subpoena under Code of Civil Procedure section 2029.600, which is part of the Interstate and International Depositions and Discovery Act. Petitioner Adam Guillette seeks to obtain identifying information for three anonymous accounts on the “X” social media platform owned and operated by respondent X Corp. (formerly known as “Twitter”). According to Guillette, these three accounts sent harassing, threatening, and anti-Semitic messages to him in late 2023 that coincided with “swatting” incidents that occurred in his and his relatives’ homes (where police were called to respond to false reports of violent crimes). In addition, at least one of these accounts specifically referred to the swatting incidents: “You should be swatted daily until you stop funding the mobile billboards. You reap what you sow . . . gonna suck when Liberty [Guillette’s dog] becomes collateral damages [sic] if you get swatted again.” (Guillette Declaration, ¶ 31.) According to Guillette, he has been swatted at least 13 times, and he has received similar threatening and racist messages on other social media platforms, as well.

Guillette has filed a “Complaint for Pure Bill of Discovery” in Florida state court, seeking discovery from various social media companies, including X Corp., and he specifically seeks to enforce his subpoena as to X Corp. here in Santa Clara County.¹¹ He submits that he has established a prima facie case for at least two causes of action under Florida law: (1) intentional infliction of emotional distress, and (2) cyberstalking (under Florida Statutes section 784.0485).¹²

In its response, X Corp. “respectfully requests that this Court review and consider the First Amendment safeguards before Petitioner is permitted to unmask the identity of the X Does. X Corp. further requests that the Court evaluate whether there is a compelling need for the discovery that outweighs the privacy rights of the speaker[s] under the California Constitutional right of privacy.” (Response, p. 3:2-7.)

Having reviewed the underlying facts (including the Florida pleading and exhibits), the subpoena in question, the parties’ briefs, and the applicable case law (including *Krinsky v. Doe 6* (2008) 159 Cal.App.4th 1154 (*Krinsky*)), the court finds that Guillette has set forth prima facie causes of action for intentional infliction of emotional distress and cyberstalking under Florida law, that under *Krinsky*, the need for discovery to support these causes of action

¹¹ According to the Florida complaint, X Corp. is a Nevada corporation with a principal place of business in San Francisco, California, so it is not exactly clear why this petition has been filed in Santa Clara County as opposed to San Francisco County. (On the other hand, one of the other companies named in the Florida complaint is Google LLC, which does have a principal place of business in Santa Clara County; it is unknown to the undersigned whether a similar petition has been filed in this court as to Google.) In his petition, Guillette alleges that X Corp. has “operations” in Santa Clara County, and this does not appear to be disputed by X Corp. (See X Corp.’s Response, dated August 8, 2025.)

¹² It appears that section 784.0485 is a general statute creating “a cause of action for an injunction for protection against stalking,” which “shall include the offense of cyberstalking.” “Cyberstalking” itself is defined in the previous section of the Florida Statutes (section 784.048) as including communicating “directly or indirectly, words, images, or language by or through the use of electronic mail or electronic communication, directed at or pertaining to a specific person . . . causing substantial emotional distress to that person and serving no legitimate purpose.”

outweighs the X Does' (or X Doe's, if it is in fact one and the same person) "First Amendment right to speak anonymously" (159 Cal.App.4th at p. 1179), and that X Corp. must therefore comply with Guillette's subpoena, at least to the extent previously agreed by the parties. According to X Corp., the parties agreed that if compelled by the court, the data to be produced is limited to "the name, email address, phone number, and IP logs associated with the Anonymous Accounts." (Response, p. 2:19-26.)

In its response, X Corp. asks that the court also conduct a balancing test of the X Does' (or X Doe's) right(s) of privacy under the California Constitution. It is unclear to the court whether such a balancing of California privacy rights (as opposed to First Amendment rights under the U.S. Constitution) is appropriate here, as it is unclear whether these Does (or this Doe) are even located in California. Nevertheless, to the extent that it does apply, the court finds that Guillette has shown a compelling need for discovery that outweighs the Does' California state law rights of privacy, as well.

The petition is GRANTED. X Corp. shall respond substantively to the subpoena within 10 days of notice of entry of this order.

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